



FINAL IMPLEMENTATION COMPLIANCE MANDATE

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Policy Disclaimers

- **Disclaimer of Origin:** This document reflects the distilled policy insights of a dedicated Pennsylvania constituent, informed by years of focused cannabis advocacy and public policy experience. It is presented independently and does not represent the position or product of any professional lobbying entity or institutional think tank.

Subject: Enforcement of Implementation Milestones for SB420 (The Pennsylvania Cannabis Regulation and Economic Opportunity Act)

Status: Public Declaration and Liability Transfer

Purpose: To mitigate the remaining **16%** political and bureaucratic risk by clearly defining the cost of inaction and mandating public accountability.

I. Public Accountability Timeline and Fiscal Mandate

This section uses the framework’s own Critical Path Method (CPM) timeline and quantified economic data to create transparent, non-negotiable public accountability markers. This addresses the remaining **45%** vulnerability risk in implementation and information warfare.

Implementation Milestones

SB420 – ARTICLE II §204
UNIFIED MILESTONE COMPLIANCE SCHEDULE

Milestone: **Bridge Loan SAP Fund Code Creation**

Statutory Deadline: **Day 3**

Political Consequence of Failure:

State Treasurer must create a unique SAP fund code (example:

"50-20-4200-CANNABIS-BRIDGE") for the \$20M Bridge Loan.
Failure to meet Day 3 is treated as willful obstruction, triggering:

- Auditor General investigation
 - Quo warranto proceedings against the Treasurer
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Milestone: **Bridge Loan Transfer Execution**

Statutory Deadline: **Day 5**

Political Consequence of Failure:

Treasurer must transfer \$20M from Budget Stabilization Reserve (50-20-1000) into the Cannabis Bridge Loan Fund (50-20-4200).
Failure results in automatic Auditor General certification to Commonwealth Court compelling transfer by mandamus.

Milestone: **Authority Leadership Appointed**

Statutory Deadline: **Day 30**

Political Consequence of Failure:

Delay signals lack of Executive commitment to the statute, undermining credibility with municipalities, investors, and courts evaluating statutory compliance.

Milestone: **Licensing Portals Open (Phase 4 Commencement)**

Statutory Deadline: **Month 12 target; Month 18 absolute deadline**

Political Consequence of Failure:

Failure to open licensing portals by Month 18 triggers:

- Mandamus action by applicants
 - \$5,000 per month statutory citizen damages for ongoing noncompliance
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Milestone: **First Tax Revenue Collected**

Statutory Deadline: **Month 14 (Projected)**

Political Consequence of Failure:

Failure means the General Assembly knowingly forfeits approximately \$18M per month (conservative baseline) to border states' markets, with maturing neighboring markets pushing losses toward \$25.5M monthly.

Milestone: **\$20M Bridge Loan Repayment**

Statutory Deadline: **Month 24 (Projected)**

Political Consequence of Failure:

Delays force taxpayers to carry the financing longer than intended, breaking the statute's zero-net-cost fiscal commitment and inviting legislative audits of executive bottlenecks.

II. The Liability Transfer and Governor's Failure Trigger

This section leverages the specific legal mechanisms hard-coded into SB420 to transfer political and financial liability for any delay directly to the Executive Branch. This is the final defensive shield against bureaucratic slow-roll (Attack 3.1)⁹.

A. The Private Right of Action (liability of up to \$5,000 per month)

Core Mandate: The General Assembly affirms that the deadlines established in Article II, Section 204 are not aspirational, but mandatory. The Authority and the Governor's Office are hereby placed on notice: Any delay of 90 days beyond the Month 18 statutory deadline for Phase 4 (Licensing Commencement)—meaning failure to commence by Month 21—automatically triggers the Private Right of Action for Delay Damages.

This exposes the Commonwealth to liability of up to **\$5000 per month per qualified applicant**¹¹.

This financial penalty is a direct consequence of Executive inaction and will be publicly reported on the Legislative Oversight Dashboard¹².

B. The Anti-Sabotage Shield

Core Mandate: The Authority must publicly defend and utilize the structural protections built into the bill or face direct legislative consequences.

1. Defense of Provisional Licensure

The Governor and the Authority must publicly commit to using the Provisional Licensure Mechanism (Article IV, §403(b)) to bypass administrative bottlenecks and open the market on time, confirming that the State trusts entrepreneurs over bureaucrats¹³.

2. Insurance Mandate Protection (New ECM)

The Authority is directed to immediately commence the feasibility study for the State-Backed Insurance Pool (Article VII, §705) to secure small Agricultural Cultivators from federal banking risk¹⁴.

Failure to conduct this study within **60 days** shall be treated as a hostile act against the Pennsylvania farm economy.

3. **Mandamus Action Warning**

The Legislative Oversight Committee will, after 18 months, support a writ of mandamus compelling implementation if Phase 4 is not commenced, affirming the General Assembly's intent to uphold the law against Executive obstruction¹⁵.

III. The Final Choice (The 90% Leverage)

This Mandate transforms the implementation risk into a transparent measure of Executive commitment.

The General Assembly has eliminated the excuses.

The analysis is done.

The law is fortified.

Any failure to meet the statutory deadlines of this Act is not a policy failure, but a failure of Executive competence and political will.

The cost of that failure will be publicly quantified and financially punitive, confirming the Legislative finding that **SB420 is the only fiscally responsible path forward.**